TRUEANON

Episode 223: Marathon Men (Part 3)

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with Brace & Liz
guests Ben Howard, Howie

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0:00
LIZ
All right, so here's the deal. In classic TrueAnon form, we have recorded six, nay, seven different cold opens. All of them stunk. Stinkers. Yeah. At one point, Brace played music off his cell phone— Baby, all right— which makes no sense— No, I'm playing— Makes no sense, we have a producer here, he puts in the music cue.

0:21
BRACE
Here's something I want to explain to you. If I had him drop in Dropkick Murphys, "Shipping Up to Boston," whoa. Then it would sound like we liked the song. No, no, it will never sound like we liked that song.

0:35
LIZ
Yes, it would.

0:36
BRACE
No one likes that song. Hugely popular American rock group featured in the hit movie The Departed by Martin Scorsese. Have you ever seen that movie?

0:36
LIZ
No, but I know it's in— No, I have seen The Departed.

0:36
BRACE
Really? But anyways, why are we mentioning this?

0:53
LIZ
We are mentioning this because, look, we just really want to reiterate— look, one fact that is a fact that is not disputed about Boston, we didn't get to get into the episode, and so we want to reiterate it right now.

BRACE 1:09
Oh, you want me to reiterate this?

LIZ 1:11
Yeah, no, I want you to iterate it, and then I want you to reiterate it.

BRACE 1:14
Alright. Brother Mark Wahlberg, who I call him that because he has several other brothers— brother Mark Wahlberg beat, viciously beat a Vietnamese man to the point where he lost his eye in a racially motivated attack in his youth, and now Wahlburgers, his brother-owned restaurant— which, by the way, no, don't go into restaurant business with your brothers, that's— you know, it's hard enough to split the check, let alone split the paycheck— and now they make a banh mi burger. I have ordered 50 of these to be delivered to Liz's house in approximately— what time is it, 8:30? In two and a half hours, so I hope you're ready to stay up, Liz. Anyways, let's start the episode.

My name is Professor Noam Chomsky. I was born in the antebellum era, and it's really been crazy out there for me to see this country grow up. I remember when Paul Revere rode his horse through these streets, warning my parents and a little me about the incoming Redcoats. Now, of course, it is 2022, and I'm gathered here with some of the oldest members of the various Boston colleges: Alan Dershowitz, Count Dracula, and the members of the band the Dropkick Murphys.

I'm just kidding, my name is Brace. We are, of course, back with Boston Bombing Part 3. And let's do a little

roundtable introduction. Who do we got here today?

HOWIE 3:07
Hey everyone, it's Howie again.

BRACE 3:07
Hello.

BEN 3:07
Hey, I'm Ben.

BRACE 3:07
Hello.

LIZ 3:07
I'm Liz, of course. And as always, we are joined by producer Young Chomsky. And like Brace said, this is TrueAnon. Stop saying hello. Okay.

BRACE 3:22
You don't like it? You don't like it when I'm friendly to you, Liz? Noted. Yes, and hello, welcome back to the third part of our series on the— on the— the— the Boston Marathon bombings, which happened nine years ago. And we just actually recently had another marathon day, and a Patriots' Day passes by. Did— did either you boys compete?

HOWIE 3:22
No, but I did go to the Sox game.

LIZ 3:51
Oh, those Sox. Go—

BRACE 3:54
Sox. Are you— Oh, did they win?

HOWIE 3:54
They did, yeah.

BRACE 3:54
That's right, baby.

LIZ 3:59
So did the Celtics, holy shit. Titletown, baby. Yeah, big time for Boston.

BRACE 3:59
You know our Pats are taking another ring this year, too. That's right, that's right.

LIZ 4:11
I'm so happy that we're recording this not during the Celtics game, to be totally honest.

So, welcome back, everyone. Last episode, we really focused on Tamerlan and his story, his lived experience. This one, we really need to turn to the other brother, Dzhokhar, and talk about not just his arrest, his confession, his trial, but also just some of the, I don't know, mysteries surrounding some of the friends and acquaintances that he made during his time in college, and some of the people that the FBI kind of round up in relation to him.

So we kind of mentioned, I think, in the first episode, and maybe again in the second, but don't quote me on that, the possibility of there being maybe another person or another— even people, basically more than two people, involved in making the actual bombs for the bombing. The reason we mentioned that is that that actually— that actually comes from the government. That was the— the

prosecution, you know, they wrote in some of their affidavits early on in the trial that they even suspected, and that FBI officials suspected, that both brothers were not capable of making the bombs, that they were too sophisticated, and that they didn't actually match the kind of, I don't know, the printouts from Inspire magazine, as maybe many media reports had suggested.

BRACE 5:52

So in order to talk about the bombs, we need to talk about a guy named Daniel Morley. And before we start the section off, I want to be clear, Daniel Morley has not been convicted in a court of law or anything like this. We're talking about merely circumstantial evidence, Daniel Morley's own admission to the police. And so basically everything we're saying from here on out is alleged, or not alleged, just something that happened that you could connect to it. So if you're innocent, my bad. But also, if you're litigious, don't sue me. And if you did make the bomb, please— well, frankly, there's actually two people recording this podcast who are way closer to you, so I'm not even sure why you'd do me anyways. I mean, that's just seems, you know— just playing, if you get them, then I'll get you.

Daniel Morley. So way back— I mean, remember, this crime took place in 2013. And do you know what happened right before 2013, or thereabouts? Because I actually can't remember the exact year, because I'll be real with you, I was on a lot of drugs. Occupy Wall Street. Now, Occupy Wall Street was, for those of you who are of maybe

a younger generation, imagine Ron Paul's re-love-olution, right? Imagine Burning Man, imagine Adbusters magazine, imagine DSA working group introductions icebreakers, and combine those all together, and then put just a lot of also normal people there, and you have Occupy Wall Street, which was a leaderless movement that ended up just about as well as you can imagine from the first part of that sentence.

Occupy Wall Street, a lot of people sort of had their political awakenings during that time. But it was sort of an odd mixture of people, both anarchists of the left and right wing varieties, I guess you could say, mixed in with a whole bunch of other people. But that was two of the real big main tendencies that came out of it. And Daniel Morley was one of the people who I would say was firmly in the Paulite camp. This was, of course, during the sort of big upswing of the Ron Paul re-love-olution. And I say it like that is because that's how they spelled it, which always confused me as a young man and, of course, one of his campaign managers.

Daniel Morley had been, I believe, assaulted a police officer at Occupy Wall Street. He was working as a photographer there. I know that he had a collection of anarchist newspapers— well, described as anarchist newspapers, but it's really like the Ron Paul newspaper kind of thing that they have there. There is actually no record of him actually being arrested, I guess. Apparently, according to Michele McPhee, who we talked about in the previous couple episodes— she's a journalist from Boston— her cop sources say that he was arrested and

that the charges were dropped. And he was also apparently a member of the hacker collective Anonymous. Now, I don't know what that means, because to me the criterion for membership in Anonymous just means that you're an annoying person on the internet, which would mean Anonymous is literally legion, billions strong, and in fact encompasses most people who log on to any website at any point in the day throughout the entire history of the internet. But, you know, looking at his background, that would not be out of character for him.

HOWIE 9:20

Yeah, so just kind of a weird thing, he was actually photographed while being arrested, which is how we know of the arrest— well, you know, in addition to Michele's cop sources. But yeah, so he was photographed, and it seems like there's no record of his arrest, which is pretty sketchy.

And then, you know, we mentioned in, I think, episode one, kind of at the same time as the shootout— or sorry, the shooting of Sean Collier, who was a police officer at MIT, there was this 7-Eleven robbery, and from the still images from the surveillance cameras within the 7-Eleven robbery— basically, Michele McPhee had shown some of family members and friends this photo of the suspected— of the suspect, and they, you know, seemed to think that it was Daniel Morley. But, you know, as I mentioned, the suspect description in the police report is actually redacted. And that investigation of a $200 robbery was taken over by a federal organization. We don't know what organization, but we can speculate.

BRACE 10:31

The sort of next break in this comes on June 9th in 2013, when Daniel Morley appears to go absolutely berserk at his parents' house. It's June 9th, 2013, and the police receive a 911 call in Topsfield, Massachusetts, from a woman named Glenda Duckworth— which is a great— that's a fake-sounding name, I'll be real with you. She's Daniel Morley's mother, and from what I understand is Daniel Morley just started kind of going crazy. He snatches his mother's eyeglasses right off of her face, which is somebody who also suffers from a serious disability like Daniel Morley's mother, which is having kind of bad vision, and then puts them over a burner on the stove, shoves her down in a chair, and draws cat whiskers on her face, which is interesting, and yells, "Witch, burn in hell." He starts chanting and, like, kind of running around and pushing her around. She gets out of there, she escapes. I think she runs into the bedroom or the bathroom.

But Daniel then goes after her mom's either boyfriend or husband— or his mom's either boyfriend or husband, I can't remember which, but her mom's partner, her mom's male partner— beats him up. Morley's mother escapes out the window. Morley, while he's beating the guy, the guy eventually sort of wriggles free. There's also, to be clear, different accounts on who he drew the cat whiskers on. There is one account that says it's on his mother. There's another account that says he drew the cat whiskers on his mom's boyfriend, which to me is a lot more humiliating, to make a cat boy out of

really one of the main men in your life.

He eventually escapes out the window. The police come. His mother says he's got weapons in the room. In his room, they find— and this is the other thing too about kind of cop sources after the fact. I have heard, in fact, on Michele McPhee's podcast, one of her guests describes him as having a Russian assault rifle. To be clear, he has a Russian battle rifle from the Second World War, which is a Mosin-Nagant, which is a far cry from what people might think of when they think of, like, a Russian assault rifle, which would probably be an AK variant rifle. But there's a lot of other sort of interesting items that are recovered from— from Mr. Morley's room. How— what are we working with here?

HOWIE 12:55

Yeah, so they did find a handgun, and he had a license to carry. They found some plastic flex cuffs, you know, like for— like, you know, the insurrectionists on January 6th were using to— to sort of handcuff people. They found some swords and a machete. There was some other really bizarre shit. They— there was a, you know, I don't know what this painting is, but it's— it sort of looks like the Boston skyline with a plane flying suspiciously low. I'll just say that.

But really, you know, more importantly than all that, they found a Fagor pressure cooker, which is the same pressure cooker brand that was used in the marathon bombs, and that brand is only— you can only buy it at one department store, Macy's, so not super

widely available. And they also found a ton of bomb-making materials, including BBs and other signatures that were consistent with the pressure cooker bombs used at the marathon, and just pressure cooker bombs in general.

And so when the police found all this stuff in his room, they asked him if the bomb was active, and he lied to them and said that it was, which prompted a bomb squad to investigate and secure the area. And I think they actually had— they had sort of a— sort of a standoff until the early hours in the morning, and they had to shut down church services for a church around the corner. But yeah, so in addition to these bomb-making materials, they found a recipe for thermate, which is sort of a variation of thermite that's used in incendiary grenades.

LIZ 14:40

And if— to listeners who have listened to our September 11th episodes with Ben, you might remember thermite from those episodes. Yeah.

HOWIE 14:48

Absolutely.

BRACE 14:49

And I actually— I know a guy who— well, no, we'll just keep rolling.

HOWIE 14:55

But yeah, so they— they also found some, you know, materials that were consistent with, you know, making thermate, which were commercial-grade aluminum and a coffee grinder— grinder to make aluminum shavings. And those, you know, thermate could have been used as an accelerant in a pressure— and one really, really important thing

to note here is that according to Daniel's mom, Glenda Duckworth, she says that all of these materials were purchased before the Boston Marathon bombing. So this wasn't, you know, a copycat bomber or anything like that.

BRACE 15:29

So what's the deal with this guy? What's the deal with— with— with Morley's personality? Because from what I can— you know, listen, I'm no mental health expert, although I will do a mental health check on any of my enemies, and I will call the police, and— well, anyways. But it does seem like trying to burn your mother's glasses, calling her a witch, and then drawing cat whiskers on either her or your— the male figure in the house belies a certain amount of mental instability. So give me a picture of this guy's— hit me with the psych profile of this— of this— of the perp here.

HOWIE 16:04

Yeah, so, you know, his mom describes him as being dark and unstable, and that's kind of backed up. You know, she said that, you know, during that confrontation, when he was melting her— her glasses, she mentions saying, you know, "I've been trying to get you help," and supposedly had an appointment on, you know, later the next week or something like that with a mental health professional. But— but his mom also said that he mentioned possibly burning the house— but burning the house down, or doing harm to himself. And that he had kind of this breakdown, had kind of been brewing for eight weeks, since the day of the marathon bombing.

16:47
LIZ
And where was he on the marathon bombing? Like, do we know?

16:51
HOWIE
Yeah, so, you know, we— we don't actually know where he was when the— the bombs went off, but he was at his mom's house, supposedly doing yard work, when he took a call and left without saying anything. And actually, when, you know, Glenda and her partner saw the marathon explosions, it actually prompted, you know, her partner to ask, "Where's your son?" Which is kind of an insane thing to suggest, you know, unless you have some reason to believe that, you know, this mentally unstable man is possibly involved in this.

17:29
BRACE
Yeah, yeah. It doesn't seem like he would have thought that the— Morley was at the Sox game, or— or running in the marathon. Yeah.

17:38
HOWIE
Exactly, exactly. And yeah, and so he was— so he left that afternoon on Marathon Monday, and he was gone for two days. And when he returned, he said that he and his friend Mark Pashuto had gone fishing. And his mom Glenda says that he would drop anything for Mark when Mark called. And she says that Mark didn't have a car and that Daniel would drive him around all the time. And—

18:05
LIZ
Mark isn't just like anybody, right? He actually, funny enough, was boxing with, or maybe against, depending on— maybe both— Tamerlan Tsarnaev.

HOWIE 18:18
Yeah, it seems like both of them were kind of both into boxing and MMA, and they— it seems like they both knew Tamerlan.

BRACE 18:24
Interesting. Well, Jesus Christ, is there one person in the fucking greater Boston area who doesn't do MMA? Every single person we've talked to in this is like, "He did MMA for, like, six years," or whatever. I mean, I'm just like, you guys have guns, you don't need to learn how to fight. That's a big fight town, though, you know. Everybody's always brawling in Boston.

BEN 18:44
Boston beatdown.

BRACE 18:47
One thing that I found odd about this is actually the FBI shows up at the crime scene.

HOWIE 18:51
Yeah, so one other thing I just want to point out about Mark, too, before we get into that, is that Daniel supposedly had kind of broken off his relationship with Mark, I think, sounds like prior to his breakdown, after the bombing, because Mark— he says— they quote him as saying, "Mark was trying to get him to do something real bad."

LIZ 19:15
And this is from the police report for him, from his arrest, right?

19:19
HOWIE
The police report from his arrest, and that arrest was two months after— roughly two months after the marathon bombings. Yeah, he says that Mark was trying to get him to do something real bad, and that they had done something that they would have to answer to God for. Interesting. Yeah, so— so pretty, pretty fucking weird.

19:39
LIZ
But the FBI does show up. They show up, like, unannounced. It seems like the local police were completely baffled that the FBI just showed up, and they're, like, turning around asking each other, like, "Hey, which one of you called the feds? Like, what the fuck?" And had no idea why the FBI was there, and that the FBI started seizing most of the evidence that was coming from Morley's room.

20:01
HOWIE
Yeah, that's what it seems like. The FBI seizes a lot of the evidence. And yeah, again, you know, multiple, multiple cops from the Tewksbury— or was it Topsfield, I can't remember— police department said that, you know, they didn't call the— they didn't call the feds. The feds don't just show up.

20:19
BRACE
Yeah. Well, especially police— police, I feel like, rarely call them because of their, you know, famous jurisdictional issues.

20:19
HOWIE
I mean, literally two months prior.

BRACE 20:29
Yeah.

HOWIE 20:30
They've been dealing with these jurisdictional issues.

BRACE 20:33
Yeah. And then you got to have, like— you have, like, the— the guy in the suit, kind of like two guys in a suit, both wearing sunglasses no matter what time it is, sort of roll up and shoulder-check your sergeant. Police don't like that.

BEN 20:43
We've also talked in the past about just the phenomena of the FBI coming into a crime scene and just taking all of the evidence, and then the investigation not going any further than that. We talked about that with the Meir Kahane murder in Brooklyn, which was definitely al-Qaeda related, but all of the evidence was taken by the FBI and never saw the light of day after that. So it's a pretty common technique that I think the FBI uses when they've got the orders to kind of hush something up. So it isn't so surprising to me that they would have shown up in this situation, assuming that Morley was involved in some way.

HOWIE 21:19
Yeah, and then, you know, like you mentioned, so Daniel was charged with assault and battery, two counts of assault and battery, as well as making a bomb threat. So that was when he lied to the police. But later on, the Essex County District Attorney filed a— basically it's a null process, which is meaning the charges have been

dropped and they wouldn't be further pursued. So despite the fact that all these bomb-making materials were found, you know, and he was charged with assault and— assault and battery, you know, nothing— nothing ended up happening to him. And I believe he went to— end up going to a mental hospital after this.

BRACE 21:57

Yeah, yeah, they just lock him up in the nuthouse. I mean, I think really one of the questions here is, A, did he rob the 7-Eleven? Is there a reason the FBI got involved in both the 7-Eleven robbery investigation and sort of this local nut? To keep in mind here, listeners, the bomb that he did have in his house was not active. There was not an active bomb in his house. I mean, I don't even think he actually had a fully assembled bomb or anything. He just had parts that you could make into a bomb.

You know, the FBI gets involved in both of these investigations. And I think really the timing of the 7-Eleven robbery and Sean Collier's murder— the police officer, the MIT police officer who was shot— are really suspicious, frankly. I mean, they happen really, really close next to each other. And there are some real questions about the Tsarnaev brothers' actual involvement in the murder of Sean Collier.

LIZ 22:58

Yeah, and their, you know, involvement in the bomb making. I mean, I want to— I don't know if we laid this out clearly enough, but I want to say, like, there— and this is per the government, and per their own filings

from— from the trial— there's no trace evidence found in either homes of the brothers. No black powder from fireworks, none found in any of the cars. There's, like— they, like, scoped their sinks, like, every drain. They found absolutely no residue of any bomb-making materials in any of their homes. Even though— it's so fascinating, because if you go back in the early coverage, the media was reporting the exact opposite, which will become important when we talk about the trial. But immediately, when Tamerlan was killed and Dzhokhar was arrested, they were saying they found trace amounts of bomb-making, I don't know, dust, whatever, probably from— they were grinding up fireworks or whatever in the Cambridge apartment, in Tamerlan's Cambridge apartment. That's not true. The media reported it, but it was never— I mean, it's in the government's case files. It's not true.

They also didn't find any circuit testers, which is something I want to bring up. The government brought that up, because they said that that actually did lead them to think there were other bombs, or potentially another bomb maker out there, because you need a circuit tester to basically test the bomb without actually detonating it, which is why you have, like, two of those. They didn't find one.

HOWIE 24:25

Interesting. Yeah, and they did find, you know, a lot of computer parts at Daniel's house. That's what's— well, you know, that's what they just— that's what the police described it as, computer parts. I don't know what

it actually was. Yeah, yeah, I don't know, or what.

LIZ 24:38

Yeah, they did find, I want to say, for the green hobby wire that the FBI did report was used to kind of wrap and contain the BBs in the bomb that was detonated at the marathon. It was like this green, kind of like, hobby fuse. And they did find that in Daniel's apartment as well, with all the other supplies.

HOWIE 25:03

Yeah. And yeah. And so to sort of tie this back to the Collier murder. Yeah. Yeah, I mean, you know, there's police who say that there's plenty of good cameras on the MIT campus that could have gotten a clear shot of the killers. But the one that was used in trial is, like, this 300-foot-away, you know, like, video that just shows these two figures. You can't make out anything about them.

And in the trial, they refer to them as "the two figures," and they don't seem to suggest, you know, which brother, you know, pulled the trigger. There's also this weird detail about— there was a call between— moments after Collier was shot, there's a call between Tamerlan and Dzhokhar. And it just— it's very odd, because if the two— if the two figures in the video are the two brothers, then why would they be calling each other on the cell phone?

And I do just want to point out that Morley was allegedly— according to the reporter of the 7-Eleven, the person who called 9/11— 911 at the 7-Eleven, said— so that person said that Morley

was on the phone at some point while— while robbing the cashier, which is very weird. But yeah.

LIZ 26:23
Yeah, the video of the Sean Collier murder is very weird, the one that was submitted during the trial that you're talking about. I mean, there was this, you know— the prosecution basically puts forth this idea that they killed Sean Collier because they wanted to get his gun. Remember, Brace, you had the whole thing about how to get it out of the holster correctly.

BRACE 26:46
I'm just saying that's what the science says. I'm not saying that you should do that unless you're, like, in an airport or something.

LIZ 26:52
But if you watch the video, I mean, it completely blows that up— because they're— that theory up, because you have basically these two figures turn around and run away after Collier is shot, with then one figure returning as an afterthought to try and grab the gun. Like, it's not it. So it makes no sense to say that the reason they did that, when that wasn't even their first inclination. It's a very, very bizarre video, I have to say.

BEN 27:19
Yeah, and I'll say that McPhee's theory about this— because Morley, I think we briefly mentioned this when we talked about the Collier murder earlier, but Morley worked as a tech, as, like, a lab tech at that MIT lab. And McPhee has sort of implied that possibly Dzhokhar and Tamerlan were

going to this lab, and possibly, if Morley was also there, to get materials from his lab, and that may have led to their confrontation with Collier. Because, as you say, the story that they went for his gun doesn't make any sense, and what is the other explanation as to why they were on the campus in that lab? Why would Collier have been alerted to their presence? Why would they have gone up and just shot a random cop for no reason? That story doesn't really make sense. And so I think that there's something to that, the idea that Morley was working in this lab and the two brothers, for some reason, get some kind of materials from that lab. That's a decent possibility there.

LIZ 28:31

So there's another guy who gets a call. You mentioned that Tamerlan and Dzhokhar— there's a call between the two of them, or the two phones registered to them, I should say, right after the murder of Sean Collier. There was another one, a friend of the brothers named Vishkan Vakabov. I don't think— I'm not going to— I'm butchering that.

BRACE 28:54

Listen, there's going to be— listeners, if you hail from anywhere except from the least educated parts of America, you're probably gonna get mad at us for this for the next probably 45 minutes of the episode, due to certain pronunciation-type words that we do. My suggestion is that you call the police and report a crime and see if they come and take your— down your story. Let's continue.

29:16

LIZ

So Vishkan, who— that's who I'm gonna— I'm just gonna call him by his first name. I like it. Yes, very distinguished name. So he's a friend of the brothers, and he receives a phone call from Tamerlan right after the murder of Sean Collier. Oddly enough, he actually lives within walking distance, like literally five-minute walking distance, from where Dun Meng was carjacked. Remember the carjacking that happens? Tamerlan knocks on the window and has the gun pointed at him, and they take the car. Okay, yeah.

Now, this guy, Vishkan, he actually refused to testify at the grand jury because he's— quote, he could incriminate himself in the Boston Marathon bombings. So who is this guy, Vishkan? So let's break this down. In court testimony, FBI SA Chad Fitzgerald— which, by the way, is like a fucking comically insane FBI name. Great mid-Atlantic name, too. Chad Fitzgerald. Chad Fitzgerald. That's a fake name.

30:18

BRACE

That unites all of the races of the Northeast. He could ride at the head of an army that unites all of the different ethnicities that make up Maine, Boston, the richer parts of New York that aren't in the city. He could ride at the head of their army.

30:38

LIZ

So Chad testifies that— I'm just calling him by their first name. That's going to be the new thing that we set, new trend.

30:38

BRACE

We're on familiar terms with these people.

30:46

LIZ

Yeah. Chad testifies that Dzhokhar— or, to be clear, at least a phone registered under the name Jahar Tsarni, I want to be clear here— placed an 88-second phone call to someone at a 617 number, which is Boston area code. You can see it's in the court documents. You know, it's submitted into evidence, the numbers are listed on the, like, call transcripts, so you can see all of them. And there's really, like, not— this is one of the burner phones that they pick up, right? This was a— this was the phone that was used that we referred to, like, during the bombing. And I believe this was the first call made on the burner cell since the Boston bombing. And so this is right after the murder of Sean Collier. That number gets traced to Vishkan.

Weirdly, Vishkan has claimed that he stopped talking to Tamerlan months before the bombing, but five days prior to the bombing, there's, like, a bunch of calls and texts between the two of them. So that's clearly not true. There's also stories— I mean, people have said that maybe they were boxing together in days, like, basically between the bombing and the shootout, which seems also completely psycho. Clearly this guy knew something, though, because he refused— he had to invoke the Fifth Amendment for— you know, otherwise he would incriminate himself in testifying to the grand jury. But just to reiterate, I mean, this is the only number

besides Tamerlan, you know, the day of the bombing, the phone registered to Jahar Tsarni— that phone called since the account was open on the 14th.

HOWIE 32:25
Yeah, and this is kind of the only real explanation we have why the brothers went from, you know, MIT, which is in Cambridge, to Allston, where they carjacked Dun Meng. You know, otherwise there's no real explanation, you know, why they would have been driving— you know, driving across town, you know, not in the direction of that, you know, address in Watertown that we mentioned. So it definitely seems like, you know, they're maybe going to pay Vishkan a visit, or just see if he was— see if he was home and want to play, maybe. I don't know.

LIZ 33:03
I mean, for poor Vishkan— I mean, he had reason to believe that— I mean, I— you know, who knows what— what the guy knows, and, you know, why he wouldn't testify. But, you know, a bunch of Dzhokhar's friends who got picked up, like— like, got the books thrown completely at them.

BRACE 33:20
Baby doll, they got basically every— they got every book ever printed thrown at them. Here's the thing: if you— if you so much as smoked half a little J with Dzhokhar or Tamerlan for— in the years prior to the bombing, then I'm sorry, but your ass is heading back to fucking Dagestan.

I have compiled a list— I've compiled a lot of lists, just to let you— I mean, there's a— there's a lot— a list

of people on a computer. But where it pertains to this episode, I've compiled a list, which I don't even think is exhaustive, because I'm sure there's more, but a list of just some of the people that are connected to Dzhokhar and Tamerlan— not connected necessarily, or even at all, to the bombings, but connected to them, or even just connected to people they knew— that were either imprisoned or deported, or in most cases both, just due to their connection to people who are, again, either the brothers or people connected to the brothers.

So in our last episode, we talked at length about Ibragim Todashev. He was executed by the FBI during an interrogation at his home in a very bizarre type of shooting. Well, if you were thinking, "I wonder if he left behind any women who missed him?" Yes, you're right. A woman named Tatiana Gruzdeva, his girlfriend, was picked up later in the same year and deported to Russia for talking to Boston Magazine about what had happened with Ibragim's shooting with the FBI.

This is going to be a tough one for me to pronounce. Asher Ahmad Miraliev, Ibragim's roommate, was actually arrested in September of 2013 after, quote, "tampering with a witness in a battery case involving Ibragim." This doesn't have anything to do, by the way, with the Boston bombings, nothing at all. He was Ibragim's roommate in Florida. His requests for an attorney were ignored, and he was transferred to an ICE facility, where he awaited deportation. The questions the FBI came in to ask him were all related to Ibragim Todashev, not actually to the alleged charge of battery or anything

like that.

Another guy, Konstantin Morozov, which is a Call of Duty villain–sounding name. A Russian who had been friends with Tamerlan until about 2009 was arrested and put in jail over his immigration status after he refused to wear a wire to spy on another one of Tamerlan's friends. Now, I want to be clear here. This is a tactic that the FBI uses quite a lot, especially with immigrant— I mean, obviously with immigrant communities— basically, where you will become an informant or more. And a lot of this, like we were talking about with Tamerlan, often relates to immigration statuses if you don't do what they say. And so now we have another pretty clear-cut case of that happening right here.

All right. Now, I expect a round of applause if I get this name right, because boy, this is a tough one. Khairullozhon. All right. Can someone else try this name?

HOWIE 36:34
Yeah. Khairullozhon Matanov.

BRACE 36:37
What the fuck? Wow. That just rolled right off. That was great. Well, that's what— yeah, Khairullozhon Matanov, who was a friend of Tamerlan, Dzhokhar— this is actually the one that makes me the saddest, but he was a friend of Tamerlan, Dzhokhar, who had actually just seen them right after the bombings. He was a taxi cab driver who ate dinner with the brothers a lot. I think it was Uzbek, I might be wrong about that, but he wasn't Chechen as far as I know, but he hung out with the brothers

sometimes. He ate food with them a few days after the bombing. He's a taxi cab driver. He was driving one of his fares, a woman he drove every day to, I think, to the train station. And he mentioned that he had actually— he had known the two brothers. This is after their names came out.

And he was really freaking out. He didn't know what to do. Now, keep in mind, put yourself in this guy's shoes, right? You are an immigrant here, not a citizen yet. I believe he has a green card. He has not been— he's 23 years old, hasn't been here for very long. Two guys that you know are just implicated in what is being described as an act of terror in the city that you live in. Going to the FBI in that case, I don't know if that many people would do that, right? Because that basically means that you're going to be about to get wrapped up in something that you have no control over, and that's very likely going to end with either prison time or deportation.

But he does go into the police and he basically confesses that he knows them. He definitely downplays his association with them, which I also would do. These two guys, as far as he knows, just bombed the Boston Marathon. I'd be like, yeah, I knew these guys, but I guess not that well.

His ass is fucking toast after that. Keep in mind, this guy went to the police, right? And tells them about the brothers. And it was like, I know these two guys, talks about it. He had eaten dinner with them the night of the bombing. And judging by their behavior and judging by actually a

testimony of other people who saw them in any intervening days from the bombing to the manhunt, they didn't actually tell their friends that they did it. Their friends actually didn't have any idea. And honestly, your first guess wouldn't be like, oh yeah, my friend must've done that, he's acting weird.

He basically has his life ruined by the FBI. They hound him. He eventually takes a plea deal. He pleads guilty, even though he does actually maintain his innocence in court, over, I believe, four charges relating to obstructing the investigation, which basically means that he didn't just admit every single time that he hung out with the Tsarnaev brothers. I mean, there's no actual evidence that he actually hindered in any way any sort of investigation into the bombings themselves whatsoever. He just wasn't completely forthcoming with the same type of people that would later ruin his life and deport them. So who can blame him?

BEN 39:44

Yeah, the woman who was his fare, apparently her father was a police officer, which I think may have been one of the reasons that she brought him in. I think they were in Braintree, so they went to the Braintree police. But— but, you know, he— I mean, if he had had a lawyer with him— like, there's so many things that he should have done in this, you know. Whether this woman knew it or not, she kind of sealed his fate by bringing him in there, you know, without any support. I mean, like you say, it was kind of inevitable that he was going to downplay his association

with him, because he wouldn't do that in that circumstance. And yeah, once you— once you start making false statements to the FBI, I mean, they're just going to nail you.

BRACE 40:20
Yeah, yeah, yeah.

HOWIE 40:22
They— they pretty much, you know, went after him for— yeah, like you said, just not being forthcoming. And the other thing is, like, yeah, I mean, it doesn't seem like there's any evidence that he knew anything about the bombings beforehand. Yeah. And actually, that there was a phone call. So remember they went to the Whole Foods? He actually called Khairullozhon— Tamerlan did— and said, "Yeah, I'm at— I'm at the grocery store getting some milk."

BRACE 40:46
Yeah, yeah. Oh, well, I mean, some milk. Maybe it was— maybe— maybe he was the one who was like, don't get skim milk, I need the Chobani vanilla oat milk, because I'm about to open the— the best coffee shop in motherfucking Braintree.

So that leads us to three of Dzhokhar's friends who I— they have a little more complicated a relationship to this than— than several of the other people who have just mentioned. That's Azamat Tazhayakov, Dias Kabir— fuck, I practiced this— Dias, D-I-A-S, Kadyrbayev, and the classic Chechen name, Robel Phillipos. Were all jailed for, quote, "helping Dzhokhar." No, I'm just kidding. No justice for the homies. No, and I gotta be real here, you know, there is a— you can be good

friends with somebody, but if they ask you to do certain things, just pretend you're busy. And this is one of those instances where you'd have to be like, oh fuck, dude, but like, Young Sheldon's on right now. They're doing a commercial-free block of Young Sheldon and I have to watch it with my alien grandmother who finds him adorable and so smart.

Because I believe I read these out in the last episode, or I think actually the first episode, the text message that Dzhokhar texts with one of these guys, I can't remember which, where he basically is like— you know, they're talking about the news and Dzhokhar is like, haha, damn, yeah, you shouldn't be texting me. Anyways, you guys can go to my dorm room and take anything that you want later.

And so these three guys— it's a very sort of teenage, although I think they're actually in their early 20s, scene at Dzhokhar's hotel— excuse me, at his dorm room, his college hotel room, let's call it. Because these three guys roll up there and they're tripping because at this point they're like, oh my God, did he fucking do this fucking bombing? They grab a USB stick, some weed, an ashtray, a baseball hat, a laptop, plus a backpack, some hollowed-out fireworks, and a jar of Vaseline, which they say— all right. Come on. Come on, guys. Keep it together.

LIZ 43:22

Exactly. You're supposed to protect your homie's dignity, man. He's getting hunted by the cops. You got to drop that.

43:28

BRACE

I was talking about this with— I can't remember what I was talking about this with, but for some reason, the whole Louis C.K. thing is my— I mean, obviously, one of those guys, the public jacking off guys, that's reprehensible in its own right, but if it ever came out in the news that I just jacked off ever, if that was ever in the news, I would immediately kill myself. Even though, like, everyone does it, I'd be like, nah, that's it for me. Like, not even like a Louis-type incident. If the five o'clock news was ever just like, Brace jacked off once, I'd be like, let's— fuck it. I'm done. Send my ass to Chechnya.

Anyways, they claim to be clear— they— there's a claim. I can't remember who made this claim, because I don't really see how it makes a lot of sense, that they took the Vaseline because it was related to— to bomb making. They are picked up by the— I know, I don't know, related to baby making, maybe— but they are picked up by the FBI. Dias does three years in prison and then is deported to Kazakhstan. Azamat also does three years and then left for Kazakhstan. I'm not sure if he was deported or not; I'm assuming he was, considering everyone else was. And Phillipos does three years.

The Phillipos trial is actually bizarre because Michael Dukakis is a witness at his trial, and in fact they let him bring a tank into the courtroom. That was Dukakis, right? No— They didn't actually let him bring a tank to the courtroom because the doors are too small, but I guess he

was friends with Phillipos's mother somehow, so he was like a character witness for Phillipos. And I think he still has a pretty tough time of it.

I mean, these guys— basically what looks really clear to me is that, like, I mean, the situation with these three friends, I mean, what they did was— you know, even if we're taking everything that the government says totally at face value, what they did was a crime, you know what I mean? Like, if your friend is like— intimates that they bombed a marathon, you generally don't want to go to their room and get rid of stuff for them. That's like— whatever dirt weed you're going to find in there is not worth it. It is very clear that these fucking three morons were not trying to, like, you know— were part of a larger conspiracy, you know, trying to, like, cover up this guy's crimes or whatever. I think they were just, like, three dumb stoners trying to kind of help their boy out. But then again, if you don't take what the government says completely at face value, which I don't think you should, this becomes a very clear three more data points in a long list of people who were basically hounded by the government, and almost uniformly deported, solely for any kind of association with the Tsarnaev brothers.

HOWIE 46:22

Yeah. And— and yet, you know, we have, you know, like we've already mentioned, Daniel Morley, who is— seems a lot more suspicious than these guys do. You know, Vishkan, Vakabov, you know, you know, maybe someone to look into, I don't know. And yet the—

here's the investigative powers being focused on, you know, Dzhokhar's stoner friends. Yeah. And, you know, all these other people that you mentioned related to Ibragim Todashev. And then, you know, some other of Tamerlan's friends.

LIZ 46:58
I mean, yeah, if you want to talk about people they don't really focus on, we've got to mention Karima Tsarnaev, right? I mean, that's the classic one.

BRACE 47:06
I'll be real with you. Vaseline's starting to make a whole lot of sense to me now, because I got to say, I think she's a smoker. Okay, well, you can continue with whatever facts or whatever you're trying to say there.

LIZ 47:18
So, Karima Tsarnaev. This is Tamerlan's wife and baby mama, but her— her birth name, Katherine Russell. She eventually converts to Islam, changes her name to Karima Tsarnaev. Did you like that?

BRACE 47:39
I really appreciate the effort of you trying to do, like, the "Islam," "Islam." That was nice. I like that.

LIZ 47:47
A little. Just a little pizzazz, wake people up a little bit. Let's talk about her, because I do know— so I haven't watched all— I watched some of— I skimmed through some of the Boston— I can't even remember— what's— Patriots Day. You watch— you watch Patriots— I kind of, like, was

skimming through it. Yeah.

BRACE 48:06
You were hitting the 30-second thing.

LIZ 48:08
Yeah, yeah, yeah. I could not make it. I mean, it was a tough watch for me, I gotta say.

BEN 48:14
You were just skipping to watch the Marky Mark scenes.

LIZ 48:16
Yeah, that's all I wanted to see.

BRACE 48:19
The 45-minute part with the Vietnamese guy? I don't understand what that had to do with the larger plot. Because he looks a lot younger during those parts too.

LIZ 48:25
Oof. The movie focuses on the Katherine Russell character quite pointedly and deeply suggests that she knew a lot more than was ever admitted in court or, like, I mean, to the FBI. The FBI basically doesn't even investigate her at all. So let's talk about this girl, Katherine Russell, a.k.a. Karima Tsarnaev.

HOWIE 48:50
Yeah, by the way, real quick. So Richard DesLauriers, I guess he— I guess he stepped down or retired from the FBI, and then he went to go work as a— as sort of like a consultant on that movie, by the way.

LIZ 49:03
Oh, classic lateral move for an FBI agent.

HOWIE 49:07
Classic move. But yeah, so Katherine Russell. So she, you know, very much just seems like— you know, she's from a suburban Rhode Island family. You know, her dad was like a doctor. She was raised Catholic. She was quoted— New York Post quoted her. They said that she was "a pretty popular girl from a respected Rhode Island family."

BEN 49:29
Well, "respected" is kind of an understatement. I mean, the Russells literally go back to, like, colonial era in Rhode Island. I mean, they're, like, old, old New England family for sure.

BRACE 49:41
So they just got off the boat and stayed there?

LIZ 49:43
Well, a lot of people did in Rhode Island. I mean, Rhode Island was basically like the wee Britain of the East Coast, which is saying a lot, basically, about what the colonies were.

BEN 49:53
It was like the— it was like the, you know— Massachusetts was like English rejects, and then Rhode Island was Massachusetts rejects. So I guess that's— I guess that's where the Russells were— were up to.

50:03

BRACE

Yeah, I know, it's— it's— it's interesting. Like, she seems to really fall under Tamerlan's spell. I mean, she— I gotta be real, Tamerlan must have ruled at fucking, because he is— he— he can— he seems like a pretty just, like— first of all, the man dresses like shit. I mean, if you've seen this guy— google "Tamerlan Tsarnaev scarf" and you'll see what I'm talking about. He seems just like a total fucking asshole, spends all of his time with his boys, you know, shirtless, sweaty, touching each other in a, quote, "gym." And is also, like, somewhat abusive and never works even for a heartbeat, except for the FBI and then in killing people.

And so— but she just, like— I mean, her parents are totally mystified by this. Like, she just really falls under this, like, deadbeat guy's spell. And I want to be clear here, that's cool when women do like guys that are losers and have nothing to offer society and aren't particularly good looking. I actually think that's a positive trait that some, like, hot women have. But in this case it's totally mystified, because not only does she, like— does she just, like, really just move in with him, have this baby with him at a very young age, but she, you know, she makes this total conversion to Islam and "Islam." I was trying to do that without laughing. And in fact just has a baby with him and then, like, moves back into her parents' house, where he doesn't live with them, and then doesn't give them, like, a dime.

51:39

LIZ

I mean, yeah, she was 21 years old when they had their daughter, which strikes me as, you know, very, very young for a girl who, yeah, then converts to Islam. I mean, so this is from Tamerlan's ex, Nadine, who we talked about in the first episode. She was the one who actually filed a police report, a domestic violence incident against Tamerlan. He, like, beat the shit out of her, really. I mean, Tamerlan in general, very violent guy, as we really detailed in episode two. Yeah.

But this was a quote from her that— so because basically she— he was— classic move, classic Tamerlan move, was seeing Nadine and Katherine at the same time. And Nadine said, "He once made me learn a verse of an Islamic prayer, and if I got it wrong he'd say, 'Well, Katherine can do it,'" which is just, one, a horrible thing to do to a girl. Like, God. Yeah, yeah, horrible gaslighting. But at the same time, if— if true, really interesting, right? Because here's a 21-year-old girl from a really— let's use the word tony— tony Rhode Island fam, like old-school, old-money fam— we're going to talk about more about this family in a second— who at 21 years old is, like, completely willing, able and ready to convert to Islam, and can repeat Islamic prayers, and is, like, ready to go, has a kid. I mean, it's— it doesn't— and it's odd, to say the least, right?

But here's the deal. So basically, the Russell family— I mean, look, they're not just a tony, suburban, old-school Russell family, right? They've got some deeper ties?

HOWIE 53:22
Yeah, so Katherine, Karima, whatever you want to call her, her grandfather— this is from his obituary— Richard Russell, Richard W. Russell, he was actually a Yale alum and, notably, a Skull and Bones member. And a U.S. Army counterintelligence officer.

LIZ 53:43
Oh, weird. That's weird.

HOWIE 53:46
You know, I'm not saying that— that that's what was up with Katherine, but hey, that's fucking weird. And— and, you know, she also— she was a— she was a student at Suffolk University in Boston. She dropped out of school to have his baby, and, you know, it seems like it kind of derailed her— her career or whatever plan she had lined up.

BRACE 54:09
I would definitely say that having the baby with Tamerlan Tsarnaev derailed whatever career that she was planning on taking up.

HOWIE 54:17
And also, kind of a weird note is their wedding was actually not at the mosque that Tamerlan went to. I don't know if that's— you know, we noted that they had this kind of— he had this kind of weird relationship there because, you know, he had these outbursts at the mosque where, you know, he said, you shouldn't be talking about Martin Luther King and stuff like that. But they had— they basically had no ceremony. It was just the two of them. They had never met the imam before, and they got married

very quickly. So all of that is very bizarre.

BEN 54:52

One other funny thing from that New York Post article about her mentions— I don't know who their source was from this, presumably some family member— that she had considered joining the Peace Corps. Oh yeah, I thought that was great. Which is just like another intelligence-adjacent thing for her. It's all very strange. The fact that her grandfather was a Skull and Bonesman, that also apparently comes from Antony Sutton's research on Skull and Bones, who people may know as a very odd, old-right British historian, very anti-Rockefeller, anti-CIA in an interesting way. Just funny that that name happened to come from a list that Sutton somehow had put together.

BRACE 55:34

Good Lord. I mean, she eventually had to move out of the state, right? I mean, she was told to stay out of Massachusetts, which, God, can you imagine? I mean, that would kill both of you boys, right? I mean, you guys are fucking Mass born and bred. And she was told to stay out of the state. And I think she moved to Connecticut, although I might be wrong on that. But there's sort of anecdotes about how she was sort of— she was followed, or at least she was, you know, surveilled. And she would sometimes do a little gaslighting of her own by just driving along the border of Massachusetts, you know, looking— I picture her like those sort of, like, peace activist Koreans from the north and south kind of gazing over the DMZ to look at what a united— because

Connecticut and Massachusetts should be the same state. Like it— I mean, without a doubt.

But she is, as far as I know— I mean, she's kept a pretty— pretty low profile, obviously, since all of this happened, a pretty low public profile. As far as I know, she's still, you know, fairly religious and is likely raising this— you know, actually, I'm kind of putting two and two together, she might be raising this kid on her own and need some help, but I will save that thought for after the podcast. But it is really interesting how essentially everybody else connected to these people was deported or harassed or arrested. I think one of the big differences would be because her family probably has some money and some connections, something a 23-year-old cab driver from Central Asia would lack. Could be also because she's a convert. But it seems unfathomable to me that of all the people mentioned that she wouldn't have any idea that her husband had participated in any number of the things that we've mentioned that Tamerlan did. She claims total ignorance.

LIZ 57:33

Yeah. I mean, she ran Google searches that said "rewards for the wife of a mujahideen." And yet the FBI did not investigate her and did not, like— I mean, it's interesting when you compare the way that the Justice Department went after Omar Mateen's wife, right? Who was eventually acquitted based on Omar Mateen's father being an informant. And yet DOJ in this instance took a really hands-off approach to Katherine

Russell, Karima Tsarnaev. I mean, like, she wasn't even called as a witness at the trial. Some of that, we'll get into, was because they really— you know, the prosecution was really successful in getting basically any and all mention of Tamerlan and his role in the Boston bombing, which I think we've detailed was quite robust, basically excluded from the trial completely.

HOWIE 58:32

Yeah, and Liz, you mentioned Omar Mateen, so I have to bring this up. But so during the Pulse nightclub shooting, he called 911, and on the phone with the 911 operator, he said something to the effect of, you know, shout out to my boy Tamerlan Tsarnaev. And on top of that, actually, the original— there was a lot— you know, a lot of people pointed out that the FBI had investigated Omar Mateen before. The reason they had— they had investigated him is because he claimed to co-workers that he knew Tamerlan Tsarnaev, and so the FBI actually went and interviewed him, and they claimed that he made the whole thing up.

BRACE 59:17

All right. As we talked about during the timeline in our first episode— well, not the timeline, I guess it was a timeline, but during the manhunt portion of our first episode— you know, all manhunts must come to an end eventually. Well, not all of them, but most manhunts eventually come to an end. And certainly the manhunt of the Tsarnaev brothers did, with the death of Tamerlan via getting shot a bunch of times and then ran over and scalped, possibly by his brother, and

then Jahar, a.k.a. Dzhokhar, being shot a bunch while hiding after having been shot in a boat, and then being arrested. And there's some pretty famous sort of— I was literally just about to unironically say "arresting"— pictures of him exiting the boat in a sort of Adidas hoodie. But he gets arrested on April 19th and then spends the night getting a ton of surgery for all the gunshot wounds that he received, because the guy got blown to fucking pieces.

LIZ 1:00:20

Yeah, he had wounds in his head, face, throat, jaw, left hand, both his legs. He was in surgery, I think, for over 12 hours. I mean, it was like a significant, significant medical intervention, we'll say.

So flash forward, right? Cut to— cut, camera, cut in— I'm not a director, I don't know what I'm saying. No, but keep going, you're doing really— yeah, he's a better director than actor. Okay, so Dzhokhar is out of surgery. He is in the hospital. His jaw has been wired shut, his— one of his eyes is sutured closed. He's on, per government filings, a shit ton of fentanyl. The FBI is like, this is perfect, we need to send in our High-Value Interrogation Group— that's literally the name of the— the group of the FBI agents that come in, High-Value Interrogation Group— to interrogate this guy for 16 hours. And that's what they do. There's no recording, by the way. And the FBI comes in and, you know, in, you know, intervals where they allow him to rest, basically questions him for 16 hours. And out of this emerges what the government calls as a confession.

So we should talk about this a little bit.

BRACE 1:01:47

Well, I think it's really important to underline the fact that he was not read his Miranda rights.

LIZ 1:01:53

Yeah.

BRACE 1:01:54

You know, there are various explanations for why he wasn't read them. One of them— that the sort of main excuse is that there was a possibility that this terrorist attack could have— you know, there could be others who are planning things, or they could have other bombs in other places that they need to know about, and they can't waste time by having one of these namby-pamby Harvard-educated lawyers coming in here and messing up our investigation when we're just trying to fucking help people.

But that does become sort of a contentious issue here, because one of the things is, all right, if you're not read your Miranda rights and there is a lot of interrogation going down, it's— it's basically— that's like— that stuff is essentially inadmissible in court, right? And so you— you really don't want to get a lot of information, you know. And— and to be totally— to— to play the devil's advocate here in a literal sense, as I am a lawyer in this example— you know, if somebody has set a bunch of bombs somewhere and you fucking arrest them and they're like, I want a lawyer, I would probably be like, I'm not going to give you a lawyer. You have to tell

me where the other bombs are. But you also have to sort of balance that out with the legality of that. And also, which it is, I think, technically legal. I think it's been legal since the '80s to do it in situations. I'm not defending, I'm just saying it is, I think, technically legal. But that— that information will not be admissible in court, and so you don't actually want, like, a really full confession during that, because that's really gonna fuck your shit up later during any kind of trial, theoretically. Yeah.

LIZ 1:03:33

There's sort of— sort of classic, like, you know, "what you don't know about Miranda rights, but I'm here to tell you about why they're not important" kind of take about that that I was reading from the— I think it was in The Atlantic, where basically they say, okay, well, if the— if the cops have a reasonable— you know, if they— if they reasonably believe there's, like, a national security threat, if there's, like, a timely security threat, then they can question someone without their Miranda rights. And this is exactly what the government offered for why this confession should continue to be admissible in court.

The problem is, is that— I want to say, like, it's been 24 hours now at the point that the FBI starts questioning him than when he was captured. Tamerlan's dead. It's been 24 hours. If there were bombs to be set off, first of all, who's setting them off, and why have they not been set off yet? So it doesn't totally stand up. And this is what Dzhokhar's

defense offers. It doesn't totally reasonably stand up that then you would need a 16-hour interrogation after a full 24 hours since the capture, which, by the way, was then, what, five days after the bombing itself, the initial bombing itself, to then, you know, get this quote-unquote "timely" information.

BEN 1:04:51

And if you're operating on the theory, like I am, that this was a much broader plot that the FBI knew a lot about and perhaps had a hand in, they would have known a lot more than what they let on. And what really would Dzhokhar have given them? I mean, it seems like a kind of a dumb stoner college student who got roped into this by his brother. It seems to me like a way to try to tie this up by getting him to say some things that kind of close the book on this whole case without implicating anybody else. Because, you know, I don't really see— you know, like we've said, they still don't know who made these bombs, for instance. And if we think that Daniel Morley did it, then it's possible the FBI already knew that at that point, that there were other people who were involved in this who perhaps had made these bombs. Certainly, there are a lot of allegations that McPhee mentions in her book that the FBI already knew the identity of these two guys before they had been caught.

So I think that— that this sort of— because it's sort of like the public safety exemption, right? Yeah. That, you know, in the interest of public safety, the FBI has to do this interrogation. Well, what could Dzhokhar have really known? And what

do we think the FBI might have already known themselves at this point? Was that really the reason that they were interrogating him? Or was that just sort of a pretext to try to get him to say some incriminating things that they could use at a later date?

LIZ 1:06:17

Well, they did. He certainly— we know that Dzhokhar didn't know that Tamerlan was dead, because the FBI repeatedly lies to him and says that Tamerlan is still alive. Dzhokhar, during this interrogation, which, again, there's, like, intervals where it'll be like four hours and then he has a break for 30 minutes, and then it's an hour and then he has a break for six hours. You know what I mean? It's spaced out. It's in different chunks. Because, again, he's on a shit ton of fentanyl, and it seems very clear that he's in and out of consciousness and falling asleep and, you know, trailing off. He's on a nod. Yeah, no, I mean, he has his wired— his jaw wired shut, like I said, so he's actually communicating on notepad through this whole thing. He continually asks, like, for his brother, like, where's my brother, is he okay, what day is it? He doesn't know what day it is, you know, what's going on, where am I. And the FBI tells him that Tamerlan's alive. He's alive, you know, tell us more about the plot. Your brother's fine. You know, all this stuff, just lying to him.

He also asked for a lawyer 10 times. He circles "lawyer" on his notepad 10 times. They— you know, no lawyer is ever provided. And at some point, federal and state public defenders

actually show up at the hospital because, again, the arrest was very public. People knew what was going on. Public defenders know what their role is here. They show up and the FBI denies them entrance completely. So then eventually a magistrate judge and a representative from the U.S. Attorney's Office has to basically show up and get into the room past the FBI to finally read him his Miranda rights. And at that point, Dzhokhar just stops talking.

BRACE 1:08:07

I got to say, a little advice for our listeners out there. If you're ever being— being interrogated by somebody who's not torturing you— they're just interrogating you, and they might yell at you or whatever, but they're just interrogating you— just say, oh, my tummy hurts, I can't answer any questions. Oh, it hurts. And just literally pretend you have a tummy ache. And what are they going to do? Say you don't? You don't know what's in there. And then you all— because the thing is, with interrogations, they're trying to break you down and outlast you, but if you have a tummy ache, you can outlast anybody.

LIZ 1:08:46

We make a lot of jokes about little TrueAnon tips, and I agree with Brace's point, but I will say, like, on a serious note, because I do actually care about our little listeners, little gumshoes, like, this is a real TrueAnon tip, and I mean this, and hopefully every parent has already taught you this, but if the cops ever take you into an interrogation, you only say you want a

lawyer. You don't ever say anything else. You don't answer any fucking questions. Don't try to be nice. I don't care if you have done something, haven't done anything. If you know something, it doesn't— I don't even— it doesn't fucking matter. You do not do anything without a lawyer ever, ever, ever.

BRACE 1:09:20

And make sure he's Jewish.

So guys, Dzhokhar is arrested and he is charged with 30 fucking counts. And these are pretty— we were talking about this before we— we started recording today, but he's actually charged with— with counts related to a weapon of mass destruction, terrorism counts. I mean, 30 of them. You know, he's— it's— I don't even have the full list in front of me here, but the guy is— the guy is facing a— a shit ton of charges.

LIZ 1:10:00

Yeah, Eric Holder comes out almost immediately and announces that the federal government would seek the death penalty. Some— some people speculated that his— that Dzhokhar's defense team tried to get a deal to basically plead guilty to get the death penalty off the table, and the feds said no, which I think is a— I think that's a reasonable inference here.

We— I think there's two big sticking points about the trial, which— you know, there's a lot of details about the trial that are really crazy. There's, you know— Masha Gessen actually had some very good coverage of the kind of insanity of the trial

itself as it was going on and then afterwards. I highly recommend, if you're interested, going back and reading their work. We're not going to get into all of the details of the trial, but there's a couple things that we want to highlight, because these become the kind of main sticking points for eventually, you know, the appeals court overturning the capital charges— or the capital sentences, rather, on the capital charges— and then finally Dzhokhar's case going to the Supreme Court and the Supreme Court then overturning the appeals decision.

So the first one to highlight is the death penalty. A little bit of context here. Massachusetts abolished the death penalty in 1984, but the state had not executed anyone since, like, 1947. This— I mean, so it's, like, not even in the imaginary of— by the way, a very, very Catholic state. It's not— In the Boston imaginary. No, it's true. I mean, it's like not of the Boston culture, I'll say. But no, I mean, look, you've got a majority Catholic population in a state that doesn't regularly execute people since the fucking 1947, right? This is not a regular occurrence. And so it's just not something that people are accustomed to. The reason I point this out is because it makes it very difficult to get a jury that will actually consider the death penalty, which you have to do in a death penalty case.

BEN 1:12:11

Right. In the state of Massachusetts, a jury that would just be okay with a death penalty by default would not really be representative of the people

of Massachusetts, probably. No, it would be a very, very select population. Yeah, yeah, yeah, which would— might be different in another state, like Texas, for instance, which executes people. Right. Alabama. Yeah.

LIZ 1:12:31

Yeah. Yeah, Masha Gessen actually notes a really illustrative exchange that was during the voir dire that I think is worth kind of running through here. So this is juror number 355. They were a criminal defense attorney training to run the 2014 Boston Marathon. Oh, come on. Oh, if you think that's crazy— says he could vote for the death penalty, but also thought it was too widely used in the U.S. So okay, you hear that and you're like, well, that sounds kind of reasonable, right? We— this is Massachusetts, this is not— it's not of your culture. He's like, it should only be— by the way, I'm kind of joking there, but I appreciate Ben clarifying that for me so people don't come after me for that. But so the federal prosecutor, Steve Mellin— Mellin with an I, by the way, which I don't like, what the fuck is that? He says, "Give me an example of someone you could put to death." And the juror says, "Milosevic."

BEN 1:13:27

Come on. What?

BRACE 1:13:29

And so that's who comes in his head? Yeah. He's like, "Sacco and Vanzetti." By the way, to be clear, totally did it. I mean, it's fine that they did, but they definitely did it.

1:13:41

LIZ

So the prosecutor is like, okay, so genocide is what you would consider, like, for the death penalty? Yeah. And the juror said yes, genocide is a good starting point. And the judge then says— disqualifies that juror, saying they didn't believe that he would be truly open to the death penalty in a way that would be necessary. So I'm just trying to show this, that, like, this is how much you have to kind of, like, whittle down the population to get a very, very select group, which I know it sounds crazy to say Milosevic, but I mean, you know, it's important. You know, this is— it's the death penalty, right? It's— it's a very serious— I could never, ever, ever be a juror on it. Not in a million— not in a million years.

The other big sticking point about the trial is the fact that it's in Boston. Now, the defense tries really, really, really hard to get the trial moved out of Boston because they said it would be impossible for him to get a fair trial in the city, and I think that they have a pretty fucking good point. Yes, it's complicated because there's a lot of precedent for terrorist attacks being tried in the communities where they occur. There's a lot of judges who are hesitant to move trials out of, you know, out of specific areas where the crimes are— occur because they, you know, they have this whole fucking thing about, oh, this is justice for the community, and blah, blah, blah, blah, blah, blah, blah. But I think that if you look at any of the evidence that that the defense kind of puts forth, the idea that they could ever get a jury out of Boston,

as opposed to basically any other location, even close to Boston, that would be fair and somewhat impartial, it's a complete absurdity. There was just no way.

The big reason why is— we got to say some of the— is really the media coverage of this thing. There was— the defense submitted in one of their, you know, one of their appeals to get this— or motions to get the trial moved before the start of the trial, they submitted this randomized survey that they did, which I think is kind of important to go through. They— they did this survey that was done in Boston, in Springfield, Massachusetts, in Manhattan, and then in DC, and they basically asked the residents if they thought that Dzhokhar was definitely guilty, probably not guilty, definitely not guilty, probably not guilty, you know, to— you know, survey— survey-style questions. And they also asked if they felt if he— you know, if he was convicted, if he should receive the death penalty. And they asked, you know, someone who participated in or attended the Boston Marathon in 2013, or have you ever participated or attended the Boston Marathon in any year.

Now, the answers to this are just overwhelmingly biased. Boston, it's pretty nuts. 57.9% of Boston residents surveyed said that he was definitely guilty. So already, right, that's a significant portion. Basically, as compared to Manhattan, 47.9%, DC, 37.4%, right? Over 51 of respondents knew someone who was there in 2013. So over half of Boston residents surveyed knew someone present at the Boston Marathon, and just under half, 49.3%,

had actually been in the marathon themselves. So there's already— half the population has a real connection to the event in question.

BEN 1:17:21
Wait, did half of people from Boston say they had participated in the Boston Marathon?

LIZ 1:17:26
I think— no, no, been there.

BEN 1:17:26
Oh, I see, got it.

LIZ 1:17:26
Not running it, but been there. Sure.

BRACE 1:17:35
That'd be so funny. It was like, yeah, 75% of people actually said that they really— they actually, like, they got a pretty good time on it. Yeah, they got sub-three hours. Most of them said they weren't at the bombing because they had actually finished the race and gone home.

LIZ 1:17:50
No, but it just shows, like, how much the population was, you know, connected to this event. And also, because of the coverage, basically, we're just like, this guy's guilty, it's just a question of whether or not, you know, he's— he's put to death or, you know, goes to prison for the rest of his life.

The defense also submitted another survey basically talking about the media coverage, which is really important. The Boston Globe covering this thing, I mean, they published 2,400 articles on the bombing, with

793 occurring on the front page. That's in, I think, 15 months between the bombing and the trial. And if you're like, well, that makes sense, it's Boston— like, for comparison, in the Oklahoma City bombing case, there were 2,200 articles over a much longer period of time across the entire state, not just the Metro paper, the entire state. And there was 200 less about the Oklahoma City bombing than were published in the Globe alone.

HOWIE 1:18:55

Yeah, and it's kind of, you know, the marathon bombing is kind of the ultimate spectacle for— as far as, you know, if you're a terrorist, right? So there's so many journalists and photographers around ready to capture that, that stuff. So, and obviously, the coverage of it afterwards was very graphic, I should say.

BRACE 1:19:19

Yeah, it was. Yeah, I mean, there were horrific images basically plastered all over TV and, you know, every available kind of media outlet that there was. People, limbs all over the ground. I mean, one of the most sort of famous— you know, two of the guys that kind of came out of this with the most fame was that one guy who got his shit— his legs blown off, and then the fucking dude in the cowboy hat who, by the way, what an insane story that guy has. The guy who's like pinching his fucking artery, who had set himself on fire after, you know, soldiers came and told him his son had died in Iraq. I mean, just— but those two were like, you know, they were sort of the biggest, I guess, celebs to come out of this, and the thing that they're

most famous for is like a pretty, you know, scary fucking scene. You know, a guy missing both of his legs, someone else holding an artery outside of his body between his fingers. You know, these were images that, like, you really could not escape.

BEN 1:20:15

I think the other factor, because I think a couple of the examples you could point to of a so-called terrorist case being tried in the same jurisdiction where it happened is like Moussaoui, you know, the supposed 20th hijacker, was tried in Virginia, you know, in the eastern part of Virginia, where the Pentagon is. You know, the suspects in the '93 World Trade Center bombing were tried in southern— you know, in Manhattan, in the Southern District of New York. But, you know, if you were on 14th Street when the '93 World Trade Center bombing happened, you may not have even noticed it. Yeah. Or if you lived in— if you lived in Eastern Virginia, you don't have— unless you live within sight of the Pentagon, you don't have a particular connection.

But in in the, you know, time period following the the marathon bombing, there was a huge manhunt that led to people being locked inside their homes, and there was, like, a real sense of, like, personally, like, wow, the— the— and, like, this little town of Watertown, this little suburb of Boston, right, was just happened to be affected by this. So I think it involved the entire metro area in a much more direct way compared to those cases where it was like it happened and then it was over. This was like in a much more direct way affected

people, because every single person who was beyond this jury who was from Boston would have been locked in their homes for a period of time because of this manhunt. So there's, you know, there just was a real, much more direct stake in it that I think would make any jury drawn from the Boston area just inherently biased in this case.

LIZ 1:21:43

Yeah, according to Masha Gessen, during jury selection, basically they asked, and almost everyone interviewed owned a piece of Boston Strong merchandise or have made a donation to a charity for survivors of the attack. There was— I mean, we should say that the defense tried— the court denies all motions for them to move the trial out of Boston. They filed another motion and had, like, another question. They were looking at data from the questionnaires filled out by potential jurors, so that would have been a pool of— I mean, I don't have it in front of me, but I'm thinking probably around 600, 800, that's usually around what the, you know, the first kind of big jury pool is. And 85% of the prospective jurors believe that he was either guilty outright or had a connection to the case. 85%. 68% of the prospective jurors believed he was guilty outright without hearing any single witness or looking at evidence. So the court denies that motion, the appeals court denies that appeal. There's one circuit judge who really has a strong dissent from this, which will become important later. But basically the trial just moves forward and they go ahead and pick this jury.

The survey data doesn't really do it justice, because the jury selection and the jurors that they pick— there's another angle, which is that before the trial actually begins, the the defense brings another motion trying to basically get a couple jurors thrown out. They bring information to the judge, this Judge O'Toole, and they show that the jurors who had already been selected— right, this is juror 286 and another juror, 138— they were not forthright about their knowledge of the case and social media posting. Juror 286 had basically posted on Twitter and Facebook prior to the beginning of the trial, right? Trial's not started yet. They had posted on Twitter and Facebook that Dzhokhar was, quote, "a piece of garbage." Another juror had posted social media bragging that he was on the jury and that he started a Facebook discussion about the selection process, during which a friend urged him to— and this is from the Washington Post— "play the part, get on the jury, and send Tsarnaev to jail where he will be taken care of." The government opposed striking these jurors for cause, and the court agreed, and basically, O'Toole, the judge, was like, it's fine, we just need to move forward.

BRACE 1:24:16

Twitter isn't real life, Liz. First of all, there's a lot of people— there's at least 12 families that could potentially have the same first name, Dzhokhar, in them, in the greater Boston area, as we mentioned in the first episode. So there's any number of people— well, not any number, but a very small number of people that this

could possibly also potentially refer to. You don't know. I mean, maybe there are other Boston bombings that we don't even know about.

HOWIE 1:24:42
Yeah, plus, you know, they could have been doing parody.

BRACE 1:24:45
Exactly. Yeah, yeah, that's why you always have to put in parentheses "parody." They could have been doing Babylon Bee-style news parody without actually even reading into what the case was about.

LIZ 1:24:55
No, it's just— it's fucking ridiculous. I mean, they bring this before the trial starts, right? It's not after the fact. It's not, you know, declaring a mistrial. It's literally just, we need to replace— strike these jurors. You have alternates. And the judge said no. I mean, it's— anyway, so this becomes a, you know, a pretty important basis for— for the defense appeals, you know, later on.

So, you know how we spent, like, two hours talking about Tamerlan Tsarnaev? You guys remember when we did that? Mm-hmm. Very vividly. And maybe our listeners remember listening to it, maybe once, maybe twice. Well, you know who didn't hear any of that information is the jury? Because actually, the prosecution was able to get basically all and every mention of Tamerlan and his— basically, and not just anything with the Waltham murders, but really, like, his connections with the FBI, his past kind of criminal behavior, all of that

was deemed irrelevant to Dzhokhar's defense.

BRACE 1:26:12

I mean, it doesn't make a lot of sense to me, because it seems like really one of the big cases the government was pushing in the first place was that Dzhokhar was sort of led by his brother, but still had full control over his actions. That while he might have been influenced by his brother, he is the captain of his own ship, and he did this of sound mind and in what he thought was a logical way. And denying sort of any information pertaining to Tamerlan, it just seems like— I mean, you know, in cases like this, especially death penalty cases, usually there's some allowance to be made for, like, quite a lot of evidence, even if it— in this case it does, but even if it doesn't necessarily pertain to every single aspect of— you know, if it's maybe of, like, second-degree or third-degree importance. But in this, all of the Tamerlan stuff would seem to be important to the first degree, and and it's just totally, basically excised from any case that the defense is trying to build here.

LIZ 1:27:16

Yeah, the federal government, you know, we mentioned, so they insisted on seeking the death penalty, and because of that, like you say, like, defenses are usually granted a lot of leeway, basically unlimited discretion per the Eighth Amendment to present any and all, like, relevant circumstance that could sway any jury away from imposing the death penalty. The idea being that the death penalty

is so serious and severe and heinous that it should be, you know, you should basically be allowed to put anything on the table that could possibly be relevant in stopping the government from going so far as execution, right?

And so what the defense— you know, the defense for Dzhokhar, what they— you know, their strategy was, was basically say, okay, yes, we aren't going to contest his guilt related to the bombings. What we're going to contest is that we should impose the death penalty. And so their entire strategy was they wanted to make the case that Tamerlan was, one, connected to the FBI, also a probable suspect in a triple murder, and that Dzhokhar had full reason to fear his brother and basically go along with him out of fear of reprisal. And they were not allowed to mount that case whatsoever.

HOWIE 1:28:36

Yeah, and we kind of touched on this last episode, you know, that the Supreme Court, in their overturning of the appeal of his death sentence, sort of mentions that, you know, well, you know, Tamerlan's dead, and Ibragim Todashev's dead, and all the victims in the Waltham triple murder are dead. So, you know, there's nothing else to say about the Waltham triple murder.

BRACE 1:29:02

Yeah, yeah, exactly. It's the case closed, sort of tied up, you know, like, well, what would the point be in even kind of coming to a conclusion at this point?

1:29:12

BEN

Despite the evidence that McPhee mentions in her book, and even Gessen brings up this possibility, that people within the FBI might have known, and certainly, you know, Watertown Police Department, for instance, you know, these dirty cops that were involved in this drug ring. I mean, these are all people who may have had information about Tamerlan's involvement in this murder, who would have— in this case, as you mentioned, because of the death penalty implications, that all would have been totally material to show that Dzhokhar should not get the death penalty. And despite the fact that that evidence seems to be out there and should have been aired in open court instead of just written about in books, none of that was going to be brought into the open for the jury to see, and therefore for the public to see.

1:29:59

LIZ

Yeah, the government basically withheld a ton of information about the Waltham murders just in the motions to allow for further discovery to then present evidence on behalf of Dzhokhar's defense, right? So the idea is that the motion basically hinged on whether or not the court would order the government to produce the Todashev confession, which is what they wanted. They wanted to introduce the Todashev confession, which, by the way, I want to remind that the Waltham murder was still technically unsolved. So it wasn't as if they were suggesting— It's still technically unsolved. Yeah. And so it wasn't as if the defense was saying, okay, here's like a little sideshow where we're going to actually

say that another guy did this murder that's been solved. It was like, this is an unsolved murder, and we know that a confession tape exists implicating the brother who was, you know, who, you know, that did this bombing along with Dzhokhar, you know, that he was involved in this.

So they tried to basically— they were the defense team who was able to listen to the tapes on appeal. They said that basically in Todashev's confession, that Tamerlan was the one who decided to kill the men, and that Todashev, quote, "felt compelled to participate because he did not have a way out." And, you know, Tamerlan was the one who slashed the throats. And so it makes a lot of sense, not even with the great leeway that is afforded to death penalty cases, to admit this on behalf of Dzhokhar, since he could possibly be in the exact same position, right?

The government tells the court that none of this is material to the case, and that Todashev's confession was compelled, and therefore totally unreliable. So basically, they say, in their filings, they say, no, no, no, no, no, no, no, the Todashev confession, which we talked about in the last episode, is really just a fake confession, and we don't even believe what he said. He's just a total psycho, and you can't base anything off of it. What they didn't tell the district court in their filing, though they should have, and it's material to the motion and the case, is that they have filed supporting affidavits where the FBI confirmed Todashev's statement that Tamerlan was the one who wanted to

kill everyone in order to eliminate any witnesses to the robbery. They had used Todashev's confession to get a warrant to search Tamerlan's car. If they didn't believe the confession was reliable, they wouldn't have used it to secure a warrant. So it's just total bullshit. But the government withheld all of this, and so the court is like, yeah, I don't really see why this would be relevant. All of it denied. It's crazy.

One— last thing I'll say about the— about— about this, and it's— I mean, it's really upsetting, because there's also, like, if you watch a lot of, like, lawyer shows or cop shows, you'll hear this get thrown around, a Brady violation, but it really is. And what that is, is that basically, you know, that, you know, critical— you know, critical details about these murders were withheld so that the defense couldn't even investigate further, which would then open up possible new information and new evidence that would have been really material to Dzhokhar's defense, right? It's sort of like a two, three, you know, like a butterfly defense here, right? But the— the defense was really correct to go on the offense on this stuff, because during jury deliberations, the jury fucking submits a question, and they say, we're confused over this issue of aiding and abetting. And they asked if they were supposed to decide if Dzhokhar was personally intended to kill people in the bombings or was simply following the orders of his brother Tamerlan. The jury was totally confused, and they were right to be confused. None of this was really

allowed to be clarified, and the judge, in response to it, said, you know, refer to the questions, it's clear there. Refer to your instructions, it's clear. The whole thing— I mean, it's just such— it's just— this kid got screwed. He got fucking screwed.

BEN 1:34:29

And beyond the fact that he even got screwed, you know, as you gave that example of the defense trying to get more information to try to do more investigation, for instance, about the Waltham triple murder and other issues. And the public was denied that information as well, because anything that would have been mentioned in the trial in open court would have become a part of the public record. We would have known about it. And we are denied all of that. And whatever information that the defense may have found out about Tamerlan's status as an FBI informant, for instance, they weren't allowed to get any of those documents. And we were never allowed to hear about any of it. So I think the public was also denied getting a full accounting of what happened in this case.

HOWIE 1:35:08

Yeah. And I think, you know, personally, I have to believe that that's why, you know, Ibragim Todashev was shot, you know, assuming that his confession is at least partially true, you know, and that he would have been brought to— you know, he would have been tried in court, and this, you know, more evidence would have come out and become public, which obviously, you know, as we've seen—

the more you start digging here, the weirder things get.

BRACE 1:35:36

So Dzhokhar is found guilty on all 30 counts, and he receives the death penalty.

So the death penalty, for those who don't live in the U.S., it is sort of unevenly applied. I don't know if unevenly applied is the right thing to say, but death penalties are the kind of thing that can get caught up in appeals for a very long time. And basically, getting a death penalty essentially means that you add about 20 years on to your trial, because that is the appeals and the reappeals, and they'll be going back and forth for a while. But he does get hit with the death penalty. I believe the first appeal was heard in December of 2019. And in July of 2020, the First Circuit Court overturned the death sentence, basically using a lot of the reasoning that we've actually used in this episode. The federal government appealed that, and it goes to the Supreme Court, where every single judge recused themselves except for Ruth Bader Ginsburg, who said that Dzhokhar should fry because he's not white.

I'm just kidding. No, they actually do reinstate the death penalty there, which actually for Ruth Bader Ginsburg accidentally, which led to her death. But then, you know, they amended it and Dzhokhar gets it as well. 6-3 decision came down, and reinstating the death penalty. This is basically ongoing, right? Like, fully expect Dzhokhar's team to appeal this once again.

You know, I don't know. You know, I tend to be a, let's say, a death penalty optimist, which is like, if you got good enough lawyers, you can drag that motherfucker out for a long, long, long time. Obviously, I'm totally against specifically America having the death penalty. I'm not a death penalty universalist, but it's one of those things where I predict for most people, it'll sort of just pop back on the radar in a NPR sidebar story or, like, New York Times page three once every two or three years. But I fully expect this will get waffled back— you know, I'm no legal expert or nothing— but at least two or three more times.

LIZ 1:38:02

Yeah. I mean, it's clear the federal government is intent on murdering this guy. So I think, if I understand correctly— again, not legal brain, not really brain in general— but the defense team, Dzhokhar's defense team, they're— they're appealing on a different, like, on a totally different basis, obviously, than they did before, which means that, I think— I mean, it— it might go to the Supreme Court again, unless the Supreme Court decides, hopefully, not to hear it, because the circuit court does seem to be a bit more, let's say, amenable to their arguments.

BRACE 1:38:41

I understand. Isn't everyone on the Supreme Court a Catholic? Shouldn't Catholics not do the death penalty? I don't think so. If there's one thing that Catholicism's known for, is never killing anybody.

1:38:52

LIZ

That one, the one woman, right? There's only one papist on there now? She's like— it's not even— it's like not even a normal Catholic. It's like a weird sect of Catholics.

1:39:04

BRACE

Oh yeah, what's her name? Yeah, yeah, yeah, Amy Coney Barrett. I thought there was a bunch of them, but you know what? Frankly, it's just America. That's none of my— I don't— I don't— it's not my business to know what the religions are. Yeah. Well—

That leaves us for today. You know, we have— we've spent, I feel like we have— we've spent about six hours laying out the Boston Marathon bombings here, and I mean, like, you know, we went into this— my take was that, like, it looks like, for whatever theory that you could kind of bring together here, the facts show us that Tamerlan Tsarnaev almost definitely had pretty extensive involvement with at least one, more likely multiple, and possibly even internationally multiple— if that makes sense, I'm talking about the FSB there— connections to intelligence and policing, federal policing agencies. Tamerlan was, of course, implicated in a pretty well-known terror attack within a very short time period of having what looks like extensive dealings with these government agencies. I think that's a pretty big deal. There are a lot of conclusions that people can draw from that. There are a lot of directions you could take that. Well, really only one direction you could take that, but there are a lot of different roads that go that

direction.

But that's the facts of the matter, right? This is really what we've seen here. The other thing, too, is that, like, yeah, a lot of the people who were connected to these brothers were basically hounded out of the country after being imprisoned by the U.S. government. His brother was essentially railroaded, has essentially been incommunicado since being arrested.

LIZ 1:41:06
Yeah. In solitary, by the way.

BRACE 1:41:10
Totally. Yeah, yeah, yeah, yeah. And if things stand as they are now, he's going to be executed by the government. The chance of us knowing the full story here is slim, unless something happens. So what we can really work with are the facts that we've worked with for these episodes, and basically what we've laid out for you.

HOWIE 1:41:34
Yeah, and I think, you know, one thing to just hit on is that this— you know, Tamerlan having worked with federal agencies and then being involved in a terrorist attacks, I mean, you know, it sort of fits a pattern that you guys have talked about, you know, various times on your show. You know, and the fact that we even know that Daniel Morley was possibly involved in the bomb making, it's sort of just a— I mean, a coincidence or a lucky break, right, that— for us anyway, as members of the public— that, you know, that he had this mental breakdown and was arrested and this evidence was

found in his room. So, yeah, I mean, we have a very, very limited set of facts to work with here.

BEN 1:42:18

Yeah, and even, you know, taking the Morley case, for instance, I mean, just what is known and what has been written about— I mean, you know, Michele McPhee, for instance, she's a very mainstream reporter. And even if you just take the fact that the FBI, the government says they don't know who made the bombs— it reminds me of the Amerithrax case, where the government's position is, they don't know who made that anthrax, and it's just sort of left as a turd in the punch bowl. It clearly— that fact that the government does not allege, and it does not seem that the brothers had anything to do with making the bombs, other than perhaps buying fireworks, that seems like a clear indication that there was a wider group that was at play here. And it seems as though, just based on the fact that Tamerlan, again, based on the reporting from Michele McPhee, seems to have been a government asset of some kind, and the fact that the FBI, according to many local cops, seems to have known the identities of the brothers before it was publicly announced, it seems to indicate that the government knew and knows a lot more about this case than it is willing to let on, and including the fact that there were almost certainly other people involved in this, perhaps other government assets that the government won't admit to.

And I think that that just is, as Howie, as you mentioned, that is very consistent with the history of domestic terrorism in this country.

You know, I think, Liz, at the very beginning of all of this, you mentioned the case of Emad Salem in the 1993 World Trade Center bombing, who was an FBI informant and who tried to stop that bombing from happening, but the FBI allowed it to go forward. And, you know, because he was probably an Egyptian intelligence officer, he happened to record his conversations with his handlers. Tamerlan Tsarnaev was, I don't think, as astute. And of course, he was killed in a shootout, and so we don't have those kinds of recordings. But I think that the evidence that's here clearly indicates the government knows a lot more than it's letting on.

And in my opinion, a lot of it points to government complicity in this, which remains unacknowledged. I think a lot of the attempts to, for instance, keep Dzhokhar incommunicado, to exclude evidence about the Waltham triple murders, to exclude evidence about Tamerlan's involvement with the FBI from the trial, and therefore from the public record, the killing of Ibragim Todashev by what I think was basically a government hit squad— all of these things, I think, are efforts to put a neat bow on it and say these two brothers did it, nobody else was involved, we had no idea it was going to happen, we had no involvement in it, case closed. When there are very clear things that have not been solved about this, for instance, where the fucking bombs came from, which seems pretty important to me. So I think that— I hope, you know, McPhee seems to be doing or continues to do reporting on this. She's got a podcast that she is doing. I hope that she—

she finds more about this, because I think there's clearly a lot more to the story that has not been talked about yet.

LIZ 1:45:24
Well, on that note, I'm Liz.

BRACE 1:45:27
My name— unpronounceable to your Western tongues, but I simply go by Brace. We're also joined by—

HOWIE 1:45:37
I'm Howie.

BEN 1:45:39
And I'm Ben.

BRACE 1:45:39
And of course, by the third Howie brother, Young Chomsky Howard, our producer. In my head that went a lot smoother than actually me saying the words, but I tried. The podcast, of course, is called Howie Non? No, TrueAnon.

LIZ 1:46:01
And we'll see you next time. Bye-bye.